

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.B. 1036
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 23-634.01, Arizona Revised Statutes, is amended
3 to read:

4 23-634.01. Denial of benefits for failure to accept suitable
5 work or actively seek work; definition

6 A. Notwithstanding section 23-776, an individual who is found by
7 the department, with respect to any week in an eligibility period ~~which~~
8 ~~THAT~~ begins from and after April 4, 1981, to have failed to apply for or
9 accept available suitable work to which ~~he~~ ~~THE INDIVIDUAL~~ was referred by
10 the department or to have failed to actively engage in seeking work is
11 disqualified from receiving extended benefits. The disqualification shall
12 begin with the week in which the failure occurred and continue until the
13 individual has been employed in each of four subsequent weeks, whether or
14 not consecutive, and has earned remuneration equal to ~~not less than~~ ~~AT~~
15 ~~LEAST~~ four times ~~his~~ ~~THE INDIVIDUAL'S~~ weekly benefit amount.

16 B. An individual shall not be denied extended benefits for failure
17 to accept an offer of or apply for available suitable work as defined in
18 subsection G of this section, if:

19 1. The position was not offered to the individual in writing or was
20 not listed with the department.

21 2. The failure would not result in a denial of benefits under
22 section 23-776 to the extent that the criteria of suitability in section
23 23-776 are not inconsistent with this section.

24 C. If an individual furnishes evidence satisfactory to the
25 department that prospects for obtaining work in ~~his~~ ~~THE INDIVIDUAL'S~~
26 customary occupation within a reasonably short period are good, the
27 determination of whether any work is suitable with respect to the
28 individual shall be made in accordance with ~~the provisions of~~ section
29 23-776 without reference to the definition contained in this section.

1 D. Work shall not be considered suitable work under this section if
2 it would not be considered suitable under section 23-776, subsection ~~E~~.

3 E. For the purposes of this section, an individual shall be treated
4 as actively engaged in seeking work during any week if the department
5 finds from tangible evidence provided by the individual that ~~he~~ THE
6 INDIVIDUAL has engaged in a systematic and sustained effort to obtain work
7 during such week.

8 F. The department shall refer an individual entitled to extended
9 benefits under this chapter to any work ~~which~~ THAT is suitable work.

10 G. For the purposes of this section, "suitable work" with respect
11 to any individual means work within the individual's capabilities in
12 which:

13 1. The gross average weekly wages payable for the work exceed the
14 sum of the individual's weekly benefit amount plus the amount of any
15 supplemental unemployment benefits payable to the individual for such
16 week.

17 2. The wages for the work are at least equal to the higher of:

18 (a) The minimum wages provided by section 6(a)(1) of the fair labor
19 standards act of 1938, without regard to any exemption.

20 (b) The state or local minimum wage.

21 Sec. 2. Section 23-762, Arizona Revised Statutes, is amended to
22 read:

23 23-762. Requirements of shared work plan; approval

24 A. An employer ~~wishing~~ THAT WISHES to participate in the shared
25 work unemployment compensation program shall submit a signed, written
26 shared work plan to the department for approval. The department shall
27 approve a shared work plan only if the plan:

28 1. Specifies the employees in the affected group.

29 2. Applies to only one affected group.

30 3. If feasible, includes a description of the employer's plan for
31 notifying an employee whose ~~work-week~~ WORKWEEK is to be reduced.

32 4. Includes a certified statement by the employer that, for the
33 six-month period immediately preceding the date the plan is submitted,
34 compensation was payable from the shared work employer, or its
35 predecessors whether or not they were shared work employers, to each
36 employee in the affected group in an amount equal to or greater than the
37 wages for insured work in one calendar quarter as provided in section
38 23-771, subsection A, paragraph ~~6~~ 7. An employee who joins an affected
39 group after the approval of the shared work plan is automatically covered
40 under the previously approved plan, effective the week that the department
41 receives written notice from the shared work employer that the employee
42 has joined and certification from the employer that the employee meets the
43 provisions of section 23-771, subsection A, paragraph ~~6~~ 7.

44 5. Includes a certified statement by the employer that for the
45 duration of the plan the reduction in the total normal weekly hours of
46 work of the employees in the affected group is instead of layoffs ~~which~~
47 THAT otherwise would result in at least as large a reduction in the total

1 normal weekly hours of work. The employer shall include an estimate of
2 the number of layoffs that would have occurred without an approved shared
3 work plan.

4 6. Specifies the manner in which the employer will treat fringe
5 benefits of the employees in the affected group if the employees' hours
6 are reduced to less than their normal weekly hours of work. The employer
7 must certify, if the employer provides health benefits and retirement
8 benefits under a defined benefit plan to any employee whose workweek is
9 reduced under the plan, that these benefits will continue to be provided
10 to an employee participating in the shared work plan under the same terms
11 and conditions as though the workweek of the employee had not been reduced
12 or to the same extent as other employees not participating in the shared
13 work program.

14 7. Specifies an expiration date that is ~~no~~ NOT more than one year
15 ~~from~~ AFTER the date the employer submits the plan for approval, except
16 that on written request by the employer, the department may approve an
17 extension of the plan for a period of not more than one year ~~from~~ AFTER
18 the date of the request.

19 8. Is approved in writing by the collective bargaining agent for
20 each collective bargaining agreement that covers any employee in the
21 affected group.

22 B. The plan prescribed in subsection A of this section and the
23 implementation of the plan must be consistent with the employer's
24 obligations under all other federal and state laws.

25 C. The department shall approve or disapprove the plan within
26 fifteen days after receipt of the plan by the department. The department
27 shall notify the employer of the reasons for denial of a shared work plan
28 within ten days ~~of~~ AFTER the determination.

29 Sec. 3. Section 23-763, Arizona Revised Statutes, is amended to
30 read:

31 23-763. Shared work benefits; eligibility; requirements

32 A. An individual is eligible to receive shared work benefits with
33 respect to any week only if, in addition to meeting the requirements of
34 article 6 of this chapter as modified by subsection E of this section, the
35 department finds that during the week:

36 1. The individual is employed as a member of an affected group in
37 an approved plan that was approved before the week and is in effect for
38 the week.

39 2. The individual's normal weekly hours of work were reduced at
40 least ten ~~per cent~~ PERCENT but not more than forty ~~per cent~~ PERCENT.

41 3. The individual met the requirements of section 23-771,
42 subsection A, paragraphs 3, ~~and~~ 4 AND 5.

43 B. Eligible individuals may participate in training to enhance job
44 skills, including ~~employer-sponsored~~ EMPLOYER-SPONSORED training or worker
45 training funded under the workforce investment act of 1998, if the
46 training is approved by the department.

1 C. The department shall not pay an individual shared work benefits
2 for more than twenty-six weeks in a benefit year, except that this
3 limitation does not apply to a week if for the period consisting of the
4 week and the immediately preceding twelve weeks the rate, not seasonally
5 adjusted, of insured unemployment in this state is equal to or greater
6 than four ~~per cent~~ PERCENT.

7 D. The total amount of regular benefits and shared work benefits
8 that the department pays to an individual for weeks in the individual's
9 benefit year shall not exceed the total for the benefit year as provided
10 in section 23-780.

11 E. Notwithstanding section 23-621 or any other provision of this
12 chapter, for purposes of this article an individual is unemployed in any
13 week for which compensation is payable to the individual, as an employee
14 in an affected group, for less than the individual's normal weekly hours
15 of work in accordance with an approved plan in effect for the week.

16 Sec. 4. Section 23-771, Arizona Revised Statutes, is amended to
17 read:

18 23-771. Eligibility for benefits

19 A. An unemployed individual is eligible to receive benefits with
20 respect to any week only if the department finds that the individual:

21 1. Has registered for work at and thereafter has continued to
22 report at an employment office in accordance with the regulations
23 prescribed by the department.

24 2. Has made a claim for benefits in accordance with section 23-772.

25 3. Is able to work.

26 4. IS AVAILABLE FOR WORK.

27 ~~4. 5. Except for an individual who is applying for shared work~~
28 ~~benefits pursuant to article 5.1 of this chapter, is available for work~~
29 ~~and both of the following apply:~~

30 ~~(a) The individual has engaged in a systematic and sustained effort~~
31 ~~to obtain work during at least four days of the week.~~

32 ~~(b) The individual has made at least one job contact per day on~~
33 ~~four different days of the week. ACTIVELY SEEKS AND APPLIES FOR SUITABLE~~

34 ~~WORK AND:~~

35 (a) CONDUCTS AT LEAST FIVE WORK SEARCH ACTIONS EACH WEEK IN ORDER
36 TO QUALIFY AS ACTIVELY SEEKING AND APPLYING FOR SUITABLE WORK. THE
37 ACTIONS SHALL INCLUDE ANY OF THE FOLLOWING:

38 (i) SUBMITTING RESUMES TO EMPLOYERS.

39 (ii) COMPLETING JOB APPLICATIONS AND SUBMITTING THE APPLICATIONS TO
40 EMPLOYERS.

41 (iii) ATTENDING JOB FAIRS THAT ARE RECOGNIZED BY THE DEPARTMENT AND
42 THE INDIVIDUAL'S ATTENDANCE IS VERIFIABLE BY THE DEPARTMENT.

43 (iv) ATTENDING INTERVIEWS WITH POTENTIAL EMPLOYERS.

44 (v) ATTENDING A DEPARTMENT-APPROVED TRAINING PROGRAM THAT INCLUDES
45 A RESUME WRITING SESSION, WHICH SHALL COUNT AS ONE WORK SEARCH ACTION FOR
46 THE WEEK THE INDIVIDUAL ATTENDED THE TRAINING PROGRAM.

1 (b) IF THE INDIVIDUAL IS APPLYING FOR A WEEKLY BENEFIT, PROVIDES A
2 WEEKLY REPORT TO THE DEPARTMENT THAT DETAILS THE INDIVIDUAL'S WORK SEARCH
3 ACTIONS FOR EVERY WEEK A BENEFIT IS SOUGHT.

4 ~~5-~~ 6. Has been unemployed for a waiting period of one week. A
5 week is not counted as a week of unemployment for the purpose of this
6 paragraph:

7 (a) Unless it occurs within the benefit year that includes the week
8 with respect to which the individual claims payment of benefits.

9 (b) Unless the individual was eligible for benefits with respect to
10 the week as provided in this section and sections 23-775, 23-776 and
11 23-777.

12 (c) If benefits have been paid in respect to the week.

13 ~~6-~~ 7. Has met one of the following requirements:

14 (a) Has been paid wages for insured work during the individual's
15 base period equal to at least one and one-half times the wages paid to the
16 individual in the calendar quarter of the individual's base period in
17 which the wages were highest, and the individual has been paid wages for
18 insured work in one calendar quarter of the individual's base period equal
19 to an amount that is equal to at least three hundred ninety times the
20 minimum wage prescribed by section 23-363 that is in effect when the
21 individual files a claim for benefits.

22 (b) For a benefit year beginning on or after September 2, 1984, has
23 been paid wages for insured work during at least two quarters of the
24 individual's base period and the amount of the wages paid in one quarter
25 would be sufficient to qualify the individual for the maximum weekly
26 benefit amount payable under this chapter and the total of the
27 individual's base-period wages is equal to or greater than the taxable
28 limit as specified in section 23-622, subsection B, paragraphs 1 and 2.

29 ~~7-~~ 8. Following the beginning date of a benefit year established
30 under this chapter or the unemployment compensation law of any other state
31 and before the effective date of a subsequent benefit year under this
32 chapter, has performed services whether or not in employment as defined in
33 section 23-615 for which wages were payable in an amount equal to or in
34 excess of eight times the weekly benefit amount for which the individual
35 is otherwise qualified under section 23-779. In making a determination
36 under this paragraph, the department shall use information available in
37 its records or require the individual to furnish necessary information
38 within thirty days after the date notice is given that the information is
39 required.

40 B. If an unemployed individual cannot establish a benefit year as
41 defined in section 23-609 due to receipt during the base period of
42 compensation for a temporary total disability pursuant to chapter 6 of
43 this title, or any similar federal law, the individual's base period shall
44 be the first four of the last five completed calendar quarters immediately
45 preceding the first day of the calendar week in which the disability
46 began. Wages previously used to establish a benefit year may not be
47 reused. This subsection does not apply unless all of the following occur:

1 1. The individual has filed a claim for benefits not later than the
2 fourth calendar week of unemployment after the end of the period of
3 disability.

4 2. The claim is filed within two years after the period of
5 disability begins.

6 3. The individual meets the requirements of subsection A of this
7 section.

8 4. The individual has attempted to return to the employment where
9 the temporary total disability occurred.

10 C. If an unemployed individual is a member of the national guard or
11 other reserve component of the United States armed forces, the individual
12 is not considered to be either employed or unavailable for work by reason
13 of the individual's participation in drill, training or other national
14 guard or reserve activity that occurs on not more than one weekend per
15 month or in lieu of a weekend drill or the equivalent.

16 D. The department shall not disqualify an individual from receiving
17 benefits under this chapter on the basis of the individual's separation
18 from employment if the individual is a victim of domestic violence and
19 leaves employment due to a documented case involving domestic violence
20 pursuant to section 13-3601 or 13-3601.02. Benefits paid to an individual
21 pursuant to this subsection shall not be charged against an employer's
22 account pursuant to section 23-727, subsection G.

23 E. The department shall not disqualify an individual from receiving
24 benefits under this chapter on the basis of the individual's separation
25 from employment if the individual was terminated from employment for not
26 receiving a COVID-19 vaccine or COVID-19 booster shot required by the
27 employer. Benefits paid to an individual pursuant to this subsection
28 shall not be charged against an employer's account pursuant to section
29 23-727 if the employer's requirement that employees receive the COVID-19
30 vaccine or COVID-19 booster shot is required by law.

31 F. For the purposes of subsection A, paragraph ~~6~~ 7 of this
32 section, wages shall be counted as wages for insured work for benefit
33 purposes with respect to any benefit year only if that benefit year begins
34 subsequent to the date on which the employing unit by which those wages
35 were paid has become an employer subject to this chapter.

36 Sec. 5. Section 23-773, Arizona Revised Statutes, is amended to
37 read:

38 23-773. Examination and determination of claims

39 A. A representative designated by the department as a deputy shall
40 promptly examine any claim for benefits and, on the basis of the facts
41 found by the deputy, shall determine whether ~~or not~~ the claim is valid.
42 If the claim is valid, the deputy shall also determine the week with
43 respect to which the benefit year shall commence, the weekly benefit
44 amount payable and the maximum duration of the benefit.

45 B. The deputy shall promptly notify the claimant and any other
46 interested parties of the determination and the reasons for the
47 determination. Except as provided in subsection D of this section, unless

1 the claimant or an interested party, within seven calendar days after the
2 delivery of notification, or within fifteen calendar days after
3 notification was mailed to the claimant's or interested party's last known
4 address, files an appeal from the determination, it shall become final,
5 and benefits shall be paid or denied in accordance with the determination.
6 The department shall adopt rules to allow an appeal to be filed in
7 writing, electronically or by telephone. If an appeal tribunal affirms a
8 determination of the deputy allowing benefits, or the appeals board
9 affirms a determination or decision allowing benefits, the benefits shall
10 be paid regardless of any appeal that may thereafter be taken, but if that
11 decision is finally reversed, no employer's account shall be charged with
12 benefits so paid.

13 C. On receipt of a request from an interested party for information
14 about a deputy's determination made pursuant to this section or section
15 23-673, the department shall make available by memorandum or other written
16 document within five days after receipt of the request the following
17 information:

18 1. The facts considered and the facts relied on in making the
19 determination.

20 2. The specific statutes, regulations or other authority relied on
21 in making the determination.

22 3. The reasoning applied in making the determination.

23 D. Before the time for appeal as prescribed in subsection B of this
24 section has expired, an interested party may request a reconsidered
25 determination. The department shall examine the request and, within seven
26 calendar days, deny the request or issue a reconsidered determination.
27 The interested party may prove that a response was timely filed by using
28 evidence of fax records that documents the date and time when a faxed
29 response was transmitted and received by the department. A request for
30 reconsideration that is denied shall be treated as an appeal, and the same
31 procedure shall be followed as provided for in case of appeal from the
32 original determination. If a reconsidered determination is issued, the
33 time for appeal shall run from the date of issuance of the reconsidered
34 determination. The employer and the claimant shall each be ~~permitted~~ **no**
35 **ALLOWED NOT** more than one request for reconsideration on each case.

36 E. Before the actual filing of an appeal under subsection B of this
37 section, but not later than the time ~~permitted~~ **ALLOWED** to appeal, the
38 department on its own motion may issue a reconsidered determination.
39 After the time for appeal has expired, but within one year after the
40 issuance of the original determination, the department with authorization
41 of the unemployment insurance program administrator may issue a
42 reconsidered determination, on the basis of newly discovered evidence that
43 by due diligence could not have been previously discovered, if no
44 administrative or judicial review has occurred or is pending on the
45 original determination. If a redetermination is based on fraud, the ~~one~~
46 ~~year~~ **ONE-YEAR** limitation on the issuance of redeterminations does not
47 apply.

1 F. Prompt notice in writing of any reconsidered determination under
2 subsection E of this section and the reasons for reconsideration shall be
3 given to all interested parties. An interested party may appeal within
4 the time prescribed under subsection B of this section, and the same
5 procedure shall be followed as provided for in case of an appeal from the
6 original determination.

7 G. IN DETERMINING THE VALIDITY OF CLAIMS PURSUANT TO SUBSECTION A
8 OF THIS SECTION, THE DEPARTMENT MAY NOT PAY BENEFITS FOR AN INITIAL OR
9 ONGOING CLAIM UNTIL THE INITIAL CLAIM IS CROSS-CHECKED, OR AN ONGOING
10 CLAIM IS CROSS-CHECKED ON A WEEKLY BASIS, AGAINST THE FOLLOWING DATA SETS:

11 1. THE NATIONAL ASSOCIATION OF STATE WORKFORCE AGENCIES' INTEGRITY
12 DATA HUB.

13 2. THE UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES
14 NATIONAL DIRECTORY OF NEW HIRES.

15 3. THE DEPARTMENT OF ECONOMIC SECURITY'S NEW HIRE REPORTING SYSTEM.

16 4. THE STATE DEPARTMENT OF CORRECTIONS INMATE DATABASES OR A
17 THIRD-PARTY, COMMERCIALY AVAILABLE INCARCERATION DATA NETWORK.

18 5. THE SOCIAL SECURITY ADMINISTRATION'S PRISONER UPDATE PROCESSING
19 SYSTEM.

20 6. THE CENTERS FOR DISEASE CONTROL AND PREVENTION'S NATIONAL VITAL
21 STATISTICS SYSTEM'S DEATH RECORDS DATABASE.

22 7. THE DEPARTMENT OF HEALTH SERVICES BUREAU OF VITAL [RECORDS]
23 [RECORDS'] DEATH RECORDS DATABASE OR A THIRD-PARTY, COMMERCIALY AVAILABLE
24 DEATH RECORDS DATABASE.

25 8. CURRENT EMPLOYMENT AND INCOME INFORMATION DELIVERABLE
26 INSTANTANEOUSLY VIA VERIFICATION SERVICES FROM EXTERNAL DATA SOURCES
27 PURSUANT TO SECTION 23-799.01.

28 H. TO MAKE THE MOST EFFECTIVE DETERMINATION OF THE POTENTIAL
29 VALIDITY OF CLAIMS, THE DEPARTMENT SHALL PRIORITIZE CROSS-CHECKING THE
30 MOST CURRENT DATA SETS, INCLUDING THOSE FROM A COMMERCIALY AVAILABLE
31 THIRD-PARTY DATABASE, BEFORE CROSS-CHECKING OLDER DATA SETS.

32 I. IF A CROSS-CHECK PURSUANT TO SUBSECTION G OF THIS SECTION
33 RESULTS IN INFORMATION INDICATING THAT A CLAIM IS INELIGIBLE OR
34 FRAUDULENT, THAT CLAIM MAY NOT BE PAID AND THE CLAIMANT SHALL BE
35 DISQUALIFIED FROM RECEIVING BENEFITS PURSUANT TO SECTION 23-778 AND
36 REFERRED FOR PROSECUTION.

37 J. THE DEPARTMENT SHALL EXAMINE ANY INITIAL CLAIM FOR BENEFITS AND
38 CONFIRM ITS VALIDITY BEFORE BENEFITS ARE PAID IF THE INITIAL CLAIM:

39 1. WAS SUBMITTED ELECTRONICALLY THROUGH AN INTERNET PROTOCOL
40 ADDRESS LOCATED OUTSIDE OF THIS STATE OR THE UNITED STATES.

41 2. REFERENCES A MAILING ADDRESS OR RESIDENTIAL ADDRESS FOR WHICH
42 ANOTHER CURRENT CLAIM WAS SUBMITTED.

43 3. IS ASSOCIATED WITH A DIRECT DEPOSIT FOR A BANK ACCOUNT ALREADY
44 USED FOR ANOTHER CURRENT CLAIM.

45 K. IF A FRAUDULENT CLAIM WAS FILED, THE DEPARTMENT MAY REFER THE
46 MATTER FOR PROSECUTION.

1 Sec. 6. Section 23-776, Arizona Revised Statutes, is amended to
2 read:

3 23-776. Disqualification from benefits for failure to accept
4 suitable work or actively seek work; exceptions

5 A. An individual shall be disqualified for benefits if the
6 department finds the individual has failed without cause ~~either to apply~~
7 ~~for available, suitable work, when so directed by the employment office or~~
8 ~~the department, to actively engage in seeking work, to accept suitable~~
9 ~~work when offered or to return to the individual's customary~~
10 ~~self-employment when so directed by the department~~ TO ACTIVELY SEEK AND
11 APPLY FOR SUITABLE WORK, TO ACCEPT AN OFFER OF SUITABLE WORK OR TO ACCEPT
12 REEMPLOYMENT AT THE SAME EMPLOYER FOR SUITABLE WORK, IF OFFERED. The
13 disqualification shall begin with the week in which the failure occurred
14 and shall continue for the duration of the individual's unemployment and
15 until the individual has earned wages in an amount equivalent to eight
16 times the individual's weekly benefit amount otherwise payable.

17 B. AN EMPLOYER SHALL REPORT TO THE DEPARTMENT WHEN AN INDIVIDUAL
18 WHO WAS PREVIOUSLY EMPLOYED WITH THAT EMPLOYER DOES ANY OF THE FOLLOWING:

- 19 1. REFUSES TO RETURN TO WORK.
20 2. REFUSES TO ACCEPT AN OFFER OF SUITABLE WORK.
21 3. FAILS, WITHOUT CAUSE, TO APPEAR FOR A SCHEDULED INTERVIEW.
22 4. FAILS TO RESPOND TO AN OFFER OF EMPLOYMENT.

23 C. THE DEPARTMENT SHALL ALLOW EMPLOYERS TO SUBMIT THE REPORTS
24 PURSUANT TO SUBSECTION B OF THIS SECTION DIGITALLY OR THROUGH EMAIL AND
25 SHALL CONDUCT AN INDEPENDENT REVIEW OF EACH REPORT TO DETERMINE WHETHER AN
26 INDIVIDUAL SHOULD BE DISQUALIFIED FROM RECEIVING BENEFITS.

27 ~~B.~~ D. In determining whether ~~or not~~ work is suitable for an
28 individual:

29 1. During the first four weeks of a benefit period, the department
30 shall consider the degree of risk involved to the individual's health,
31 safety and morals, the individual's physical fitness and prior training,
32 the individual's experience and prior earnings, the individual's length of
33 unemployment and prospects for securing local work in the individual's
34 customary occupation and the distance of the available work from the
35 individual's residence.

36 2. After the first four weeks of a benefit period, the department
37 shall consider any employment offer that pays one hundred twenty percent
38 of the individual's weekly benefit amount to be suitable work.

39 ~~C.~~ E. Notwithstanding any other provisions of this chapter, work
40 shall not be deemed suitable and benefits shall not be denied under this
41 chapter to an otherwise eligible individual for refusing to accept new
42 work under any of the following conditions:

43 1. The position offered is vacant due directly to a strike, lockout
44 or other labor dispute.

45 2. The wages, hours or other conditions of the work offered are
46 substantially less favorable to the individual than those prevailing for
47 similar work in the locality.

1 3. As a condition of being employed, the individual would be
2 required to join a company union or to resign from or refrain from joining
3 a bona fide labor organization.

4 ~~D.~~ F. An individual is considered to have refused an offer of
5 suitable work under subsection A of this section if an offer of work is
6 withdrawn by an employer after an individual either:

7 1. Tests positive for drugs after a drug test given pursuant to
8 chapter 2, article 14 of this title by or on behalf of a prospective
9 employer as a condition of an offer of employment.

10 2. Refuses, without good cause, to submit to a drug test that is
11 required by a prospective employer as a condition of an offer of
12 employment.

13 Enroll and engross to conform

14 Amend title to conform

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